

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JUNE 24, 2026
8:30 a.m.

4. SAVANNA ARNETT GAVIN NISHIHARA

25FL1181

This matter is before the court on four separate issues: (1) an Order to Show Cause (OSC) regarding contempt, issued April 20, 2026; (2) a Request for Order (RFO) filed by the Petitioner on May 11, 2026, for move-away orders; (3) a motion, filed by the Respondent on June 02, 2026, to set aside and/or vacate default judgment; and (4) an RFO filed by the Respondent on June 03, 2026, to set aside and/or vacate the default judgment (entered December 02, 2025), as well as the Findings and Orders after Hearing (issued November 26, 2025), modify child custody and visitation, and award attorney fees and costs.

OSC Re: Contempt Issued April 20, 2026

The OSC alleges Respondent failed to comply with this court's support orders. Arraignment on the OSC was originally set for June 03, 2026. On June 02, 2026, the court issued a tentative ruling indicating that service was untimely. At the hearing on June 03, 2026, however, Respondent's attorney waived time for service. Proof of service filed later on June 03, 2026, shows Respondent was electronically served that same day.

Appearances are required for arraignment, entry of plea, determination of representation (i.e., whether Respondent is requesting a public defender), and setting of trial.

RFO Filed by Petitioner May 11, 2026

Proof of service filed May 18, 2026, shows the RFO was electronically served upon Respondent that same day.

Petitioner's RFO includes a request for temporary orders authorizing her to temporarily reside with the children in the state of Arizona pending the hearing. The court denies Petitioner's request for temporary orders.

On June 02, 2026, Respondent filed a Responsive Declaration. To date, there is no proof of service for this Responsive Declaration in the court's file.

On June 11, 2026, Respondent filed a memorandum of points and authorities in opposition to Petitioner's RFO. Proof of service attached to the brief shows it was electronically served upon Petitioner on June 11, 2026.

The Petitioner's RFO will require the court to conduct an evidentiary hearing regarding the *LaMusga*¹ move-away factors. Appearances are required to participate in the selection of an evidentiary hearing date.

¹ *In re Marriage of LaMusga* (2004) 32 Cal.4th 1072.

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Motion to Set Aside Filed by Respondent June 02, 2026

Respondent filed his motion using Local Form C-35. Respondent did not use Judicial Council form FL-300, as required under California Rule of Court 5.92, subdivision (a)(1) (“a notice of motion or order to show cause must be filed on *Request for Order* (form FL-300) ...”). Due to the procedural defect, the court will drop this matter from the calendar.

RFO Filed by Respondent June 03, 2026

The court, on its own motion, continues the matter to 8:30 a.m., Wednesday, July 01, 2026, in Department 12. The court apologizes to the parties for any inconvenience.

TENTATIVE RULING #4:

OSC RE: CONTEMPT ISSUED APRIL 20, 2026: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, JUNE 24, 2026, IN DEPARTMENT 12 FOR ARRAIGNMENT, ENTRY OF PLEA, DETERMINATION OF REPRESENTATION, AND SETTING OF TRIAL.

RFO FILED BY PETITIONER MAY 11, 2026: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, JUNE 24, 2026, IN DEPARTMENT 12 TO PARTICIPATE IN THE SELECTION OF AN EVIDENTIARY HEARING DATE.

MOTION TO SET ASIDE FILED BY RESPONDENT JUNE 02, 2026: DUE TO THE PROCEDURAL DEFECT, MATTER IS DROPPED FROM THE CALENDAR.

RFO FILED BY RESPONDENT JUNE 03, 2026: THE COURT, ON ITS OWN MOTION, CONTINUES THE MATTER TO WEDNESDAY, JULY 01, 2026, AT 8:30 A.M., IN DEPARTMENT 12.